Vermont Superior Court
Filed 04/01/26
Bennington Unit

VERMONT SUPERIOR COURT

CRIMINAL DIVISION, BENNINGTON UNIT

State of Vermont

v.

Justin Ames Gamache

Docket No. 1127-10-13 Bncr

MEMORANDUM OF LAW REGARDING 13 V.S.A. § 3002, THE ABSENCE OF A RECORD-BASED PREDICATE-OFFENSE CLASSIFICATION, AND ALTERNATIVE RELIEF BY SEALING

The question before the Court is not whether the phrase "predicate offense" has been repeated in later denials, but whether the record and governing statutes actually establish that classification. Under Vermont's current statutory framework, "qualifying crime" includes all misdemeanor offenses except specified exclusions, and the current definition section no longer contains the former standalone definition of "predicate offense" that existed under prior law (13 V.S.A. § 7601, 2026; 2025 Vt. Acts & Resolves No. 60, § 1). The Court's present analysis must therefore be governed by the text now in force, rather than by continuing to treat a removed statutory definition as if it still controls current classification (13 V.S.A. §§ 7601–7602, 2026). That matters here because 13 V.S.A. § 3002 is not excluded from qualifying-misdemeanor status by the current statutory text (13 V.S.A. § 7601, 2026).

This filing should not be confused with a motion. It is a memorandum of law directed to the facts of the legislation as originally written in the past, as enacted in the present, and as properly applied going forward unless and until the Legislature expressly provides otherwise. The issue is therefore one of statutory meaning and record accuracy, not one of mere repetition of prior labels. The controlling question remains whether Vermont law and the contemporaneous case record actually establish 13 V.S.A. § 3002 as a predicate offense, and on this record they do not (13 V.S.A. §§ 7601–7602, 2026).

The contemporaneous record is direct, and it helps precisely because it fixes the original character of the offense on the books. The February 11, 2014 entry states: "Reparative Board Referral … 1. IMPERSONATION OF PUBLIC OFFICER … 08/17/2013 (MIS) 13 VSA 3002 (13V3002)," which records the matter as a misdemeanor offense under § 3002 and nothing more (Vermont Superior Court, Bennington Unit, 2026). That entry supports the position that Petitioner pled guilty to a nonviolent misdemeanor charge that the court itself recorded as "(MIS) 13 VSA 3002," not as a listed crime and not as an expressly designated predicate offense (Vermont Superior Court, Bennington Unit, 2026). If the original legal character of the case had truly been a predicate offense for Chapter 230 purposes, the Court's own contemporaneous record should reflect that classification, yet the dispositive entry reflects only a misdemeanor referral to the Reparative Board (Vermont Superior Court, Bennington Unit, 2026).

The broader register and docket history reinforces the same point. The case is identified as a misdemeanor matter, the offense is listed as “IMPERSONATION OF PUBLIC OFFICER,” and the record reflects a guilty plea and disposition under 13 V.S.A. § 3002 without any contemporaneous notation that the conviction was entered as a predicate offense or as some separately excluded category (Vermont Superior Court, Bennington Unit, 2020, 2026). The later predicate-offense theory therefore appears as a subsequent interpretive label applied in later rulings rather than as an original record-based classification established at plea or disposition (Vermont Superior Court, Bennington Unit, 2020, 2026). No evidence is therefore provided in the contemporaneous record establishing, as a fact of law, that § 3002 was classified as a predicate offense before the 2025 statutory revision, and repeated later use of that phrase does not supply what the original record does not show (Vermont Superior Court, Bennington Unit, 2020, 2026).

Petitioner has not been confused about what a predicate offense is, and the record should not suggest otherwise. As Petitioner has previously maintained in earlier filings, the relevant problem is not a failure to understand the term, but the improper extension of that term to 13 V.S.A. § 3002 when the statute is not enumerated in the legislation as a predicate offense and the contemporaneous case record does not classify it as such (Vermont Superior Court, Bennington Unit, 2026; 13 V.S.A. § 7601, 2026). The older theory effectively assumes that because § 3002 enhances punishment for a second or subsequent offense, it must automatically qualify as a predicate offense for Chapter 230 purposes, but that conclusion is not stated in § 3002 itself and is not part of the current operative definition in § 7601 (13 V.S.A. §§ 3002, 7601, 2026). The legislation and current statutory framing therefore do not support treating § 3002 as a predicate offense merely because it contains an internal repeat-offense enhancement provision (13 V.S.A. §§ 3002, 7601, 2026).

That conclusion is strengthened by the text of the related exclusion provisions. Vermont’s listed-crime definition in 13 V.S.A. § 5301(7) is an enumerated statutory list, and impersonation of officer under § 3002 does not appear in that list (13 V.S.A. § 5301(7), 2026). Likewise, current § 7601 defines qualifying crimes broadly to include misdemeanor offenses except the exclusions specifically identified by statute, and § 3002 is not named among those exclusions in the current law (13 V.S.A. § 7601, 2026). The better reading, then, is that § 3002 remains a misdemeanor offense not excluded from qualifying status under the present statutory framework, even if earlier rulings attempted to place it within a broader and now-removed predicate-offense concept (13 V.S.A. §§ 5301(7), 7601, 2026).

The State’s opposition, as reflected in the current register, does not cure that statutory problem. The hearing minutes from February 26, 2026 reflect only that Defendant requested expungement and that the State opposed, and the minute entry does not set out any developed statutory analysis explaining why § 3002 should continue to be treated as a predicate offense under the current law (Vermont Superior Court, Bennington Unit, 2026). Petitioner has consistently maintained that the State’s position amounted to unsupported assertion rather than legal analysis, and that is why Petitioner previously stated that the State was “speculating on all accounts” when attempting to preserve the predicate-offense label without adequate legislative or statutory grounding. On this record, Petitioner cannot agree that “because it is” is a legal argument, because the legislation, the statute, and the contemporaneous case entries do not establish the classification the State seeks to preserve (Vermont Superior Court, Bennington Unit, 2026; 13 V.S.A. §§ 3002, 5301(7), 7601, 2026).

The argument still stands in support of the legislation itself. This matter is a misdemeanor because the law and record establish it as a misdemeanor, not because the State prefers a later label that is unsupported by the original entry. The predicate-offense argument by the State can no longer be used as a sufficient justification to deny all relief where the statutory framing does not establish § 3002 as an enumerated predicate offense. Until the Legislature clearly says otherwise, this matter remains what the law and the court record say it is, namely a misdemeanor under 13 V.S.A. § 3002.

At the same time, this memorandum does not collapse expungement and sealing into the same remedy. Current 13 V.S.A. § 7602 limits expungement of a conviction to circumstances in which the underlying conduct is no longer prohibited by law or designated as a criminal offense, and § 3002 remains an active criminal statute, which is why expungement may fail under the present text (13 V.S.A. §§ 3002, 7602, 2026). But § 7602 separately authorizes sealing for convictions involving qualifying crimes, and § 7607 provides that, upon entry of a sealing order, the person whose record is sealed shall be treated in all respects as if the person had never been arrested, convicted, or sentenced for the offense, while public inspection is tightly restricted (13 V.S.A. §§ 7602, 7607, 2026). That statutory distinction is critical here because the Court may deny expungement under current § 7602(a)(1) and still order sealing as the legally sound alternative that keeps the matter from public view to the fullest extent permitted by law (13 V.S.A. §§ 7602, 7607, 2026).

Conclusion

For the foregoing reasons, the continued reliance on a predicate-offense classification for 13 V.S.A. § 3002 should not control the present analysis because the contemporaneous record does not establish that classification and the current statutory framework no longer turns on that removed definition (13 V.S.A. §§ 7601–7602, 2026; Vermont Superior Court, Bennington Unit, 2020, 2026). The record instead shows that Petitioner pled guilty to a nonviolent misdemeanor charge recorded as “02/11/2014 Reparative Board Referral … IMPERSONATION OF PUBLIC OFFICER … 08/17/2013 (MIS) 13 VSA 3002 (13V3002),” which materially supports the conclusion that the offense was entered and disposed of as a misdemeanor under § 3002 rather than as an originally designated predicate offense (Vermont Superior Court, Bennington Unit, 2026). This is not a motion, but a memorandum of law pointing to the facts of the legislation as originally written in the past, as enacted in the present, and as properly applied going forward unless and until the Legislature expressly provides otherwise. The argument therefore remains grounded in the legislation itself: on this record and under the current statutory framework, this matter is a misdemeanor under 13 V.S.A. § 3002, not a predicate offense because the State prefers to call it one.

If the Court does not wish to order expungement under current 13 V.S.A. § 7602(a)(1), then the legally sound and equitable remedy is to order sealing. Section 3002 is not a listed crime, is not excluded from qualifying status under the current statute, and sealing would keep this matter from continued public exposure to the fullest extent permitted by law (13 V.S.A. §§ 5301(7), 7601–7602, 7607, 2026). My professional advice is to seal the record, because that remedy aligns with the present statutory framework while recognizing the contemporaneous record for what it actually shows. Petitioner therefore respectfully requests that the Court reject continued use of an unsupported predicate-offense

label as the controlling basis for relief and, at minimum, order the record sealed from public view under the governing statutory framework (13 V.S.A. §§ 7601–7602, 7607, 2026).

Respectfully submitted,

Justin Ames Gamache, M.Ed., M.S.

/s/Justin-Ames Gamache, M.Ed., M.S.
Pro Se

April 1, 2026

References:

13 V.S.A. § 3002. (2026). *Impersonation of officer.* Vermont Statutes Online. Vermont General Assembly.

13 V.S.A. § 5301(7). (2026). *Definitions; listed crime*. Vermont Statutes Online. Vermont General Assembly.

13 V.S.A. § 7601. (2026). *Definitions*. Vermont Statutes Online. Vermont General Assembly.

13 V.S.A. § 7602. (2026). *Expungement and sealing of record, post-conviction; procedure*. Vermont Statutes Online. Vermont General Assembly.

13 V.S.A. § 7607. (2026). *Effect of sealing*. Vermont Statutes Online. Vermont General Assembly.

2025 Vt. Acts & Resolves No. 60, § 1. (2025). *An act relating to sealing criminal history records*. Vermont General Assembly.

Vermont Superior Court, Bennington Criminal Division. (2020). *Docket no. 1127-10-13 Bncr State vs. Gamache, Justin* [Court docket summary]. User-provided file.

Vermont Superior Court, Bennington Unit. (2026). *Register of actions: State of Vermont v. Justin Gamache, No. 1127-10-13 Bncr* [Court record]. User-provided file.

Vermont Superior Court, Bennington Unit. (2026). *Memorandum of law regarding 13 V.S.A. § 3002, the absence of a record-based predicate-offense classification, and alternative relief by sealing* [User draft text]. User-provided file.

Certificate of Service

I hereby certify that on this date I served a true and correct copy of the foregoing Memorandum of Law by electronic mail upon the Bennington Unit, with courtesy copies to **erica.marthage@vermont.gov** and **sean.dillon@vermont.gov**, and blind copy to **ago.info@vermont.gov**, in accordance with the service information reflected in the court record and draft service screenshot provided by Petitioner. The party information reflected in the register identifies Erica A. Marthage and Sean Dillon for the State, and the draft email image reflects those addresses as the intended courtesy-copy recipients (Vermont Superior Court, Bennington Unit, 2026). Accordingly, service was directed to the appropriate State counsel of record and to the court unit identified for filing and notice in this matter. I declare under penalty of perjury that the foregoing is true and correct to the best of my knowledge.

Dated: April 1, 2026

Respectfully Submitted

Justin-Ames Gamache, M.Ed., M.S.

/s/Justin-Ames Gamache, M.Ed., M.S.

Pro Se

Vermont Superior Court
Filed 04/01/26
Bennington Unit

VERMONT SUPERIOR COURT
Bennington Unit
200 Veterans Memorial Drive
Bennington, VT 05201
802-447-2727
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CRIMINAL DIVISION
Case No. 1127-10-13 Bncr

State of Vermont v. Justin Gamache

DECISION ON MOTION

Petitioner, Justin-Ames Gamache, has filed multiple motions. At a hearing on these motions, Petitioner explained the motions were seeking all seeking expungement of the underlying offense. The State opposes such a petition. For the following reasons the pending motions will be denied.

At the hearing, Petitioner expressed confusion about how his conviction was a predicate offense. Petitioner pointed to the fact that the charge wasn't expressly listed in the expungement statute's definitions. Petitioner has studied the issues and worked hard to attain education beyond the legal field. The Legislature has amended the expungement statute multiple times since Petitioner's original plea. Under the current law applying to Petitioner's instant petition, predicate offenses are no longer part of the qualifying conditions for expungement. However, the court will also address the previous law's application to earlier petitions, given Petitioner's statements at the hearing.

Previous Petitions

Petitioner pled guilty to one count of impersonating a police officer under 13 V.S.A. § 3002(1) in 2014. At the time, the definitions section of the expungement statute read:

> (3) "Predicate offense" means a criminal offense that can be used to enhance a sentence levied for a later conviction, and includes operating a vehicle under the influence of intoxicating liquor or other substance in violation of 23 V.S.A. § 1201, domestic assault in violation of section 1042 of this title, and stalking in violation of section 1062 of this title. "Predicate offense" shall not include misdemeanor possession of marijuana.
>
> (4) "Qualifying crime" means:
>
> > (A) a misdemeanor offense which is not a listed crime as defined in subdivision 5301(7) of this title, an offense involving sexual exploitation of children in violation of chapter

> 64 of this title, an offense involving violation of a protection order in violation of section 1030 of this title, a prohibited act as defined in section 2632 of this title, or a predicate offense;

13 V.S.A. § 7601(3)–(4) (2013). The definition of predicate offense remained in the statute up through the summer of 2025.[1] See Act 60, 2025, No. 60, § 1, (eff. July 1, 2025) (removing the definition of "predicate offense"). Subdivision (4) prohibited predicate offenses from being considered qualifying crimes. In turn, a predicate offense under subdivision (3) was "a criminal offense that can be used to enhance a sentence levied for a later conviction[.]" 13 V.S.A. § 7601(3) (2013). This subdivision did not list all such offenses by statute section number, though it did include some examples, but any charge where a subsequent charge could carry an enhanced sentence would be considered a predicate offense under this definition.

The crime of impersonating a police officer contains two potential charges:

> A person who impersonates or attempts to impersonate a sheriff, deputy sheriff, constable, police officer, fish and game warden, or any other State, county, or town officer shall:
>
> (1) for the first offense, be imprisoned not more than six months or fined not more than $500.00, or both;
>
> (2) for the second offense and subsequent offenses, be imprisoned not more than two years or fined not more than $1,000.00, or both.

13 V.S.A. § 3002. Petitioner pled guilty to the first offense. If there is a second offense, the Legislature instructed that the person receive be an additional sentencing enhancement to "be imprisoned not more than two years or fined not more than $1,000.00, or both." 13 V.S.A. § 3002(2). In other words, a plea of guilty for 13 V.S.A. § 3002(1) can be used to levy an enhanced sentence for a later conviction under 13 V.S.A. § 3002(2), as required for predicate offenses under 13 V.S.A. § 7601(3). This makes the first time a person has impersonated a police officer under subdivision (1) a predicate offense for a second and any subsequent offenses for impersonation of a police officer under subdivision (2). The Legislature had, through 13 V.S.A. § 7601(3) (2013)[2], excluded 13 V.S.A. § 3002(1) from the list of qualifying crimes, as any charge of impersonating a police officer is a predicate offense enhancing the penalties for subsequent offenses. See 13 V.S.A. § 7601(4) (2013); 13 V.S.A. § 3002.

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[1] The Legislature has amended the expungement statute definitions no less than six times since Defendant pled guilty. See 2015, No. 36, § 1; 2017, No. 57, § 3; 2017, No. 83, § 161(3); 2019, No. 32, § 2; 2019, No. 167 (Adj. Sess.), § 33; 2025, No. 60, § 1.

[2] The relevant definition of predicate offense had been part of the expungement statute since the Legislature first wrote the full statute in 2012. See 2011, No. 131, § 1 (eff. July 1, 2012) (codified at 13 V.S.A. § 7601–08). Given the timing of Petitioner's guilty plea, the 2013 amendment to 13 V.S.A. § 7601 is the first version of the law which applied to Petitioner.

Petitioner has filed many petitions for expungement. They were denied first because under the older version of the expungement statute, 13 V.S.A. § 3002(1) was a predicate offense for 13 V.S.A. § 3002(2), and then because 13 V.S.A. § 7605 applies a two-year time bar before a person may renew their petition after a decision. Petitioner has also filed many other untimely motions to dismiss, or other motions which could not be addressed by the criminal court because they fell outside of the forms of relief the Legislature has made available.

Current Petition

At the hearing, Petitioner made it clear that he sought expungement, rather than review of governmental action under Rule 75, *Compl.* (September 17, 2025), or a motion for summary judgment (Motion 28), the forms of relief he originally filed for. The motion to compel a response from the State (Motion 30) is moot, as the State has given its response at the hearing. See *State v. J.R.*, No. 25-AP-141, 2025 WL 1913579 at *2 (Vt. July 11, 2025) (unpublished mem.) (holding the expungement statute's required hearing allows State to respond either by written opposition within time defined by court, or orally at hearing). Appreciating the time Petitioner spent on the original motions, the court will still address both briefly.

A motion for review of governmental action under Rule 75 will not have the effect of expunging a criminal conviction. The rule only applies to "any agency of the state or a political subdivision thereof, including any department, board, commission, or officer" which encompasses the decisions of agencies under the executive branch, such as the department of corrections, or parole board. V.R.C.P. 75(a). This does not include the criminal court, which is governed by the judicial branch. *Pfeil v. Rutland District Court*, 147 Vt. 305, 308 (1986) ("Rule 75 applies only to actions taken by 'an agency of the state or a political subdivision thereof....' A district court does not come within either of these classifications." (quoting V.R.C.P. 75)). Those decisions are appealable through the regular appellate process with the Supreme Court and governed by the Vermont Rules of Appellate Procedure. V.R.A.P. 1–49. Summary judgment will not vacate a conviction, either, and is untimely, as judgment has already been rendered by Petitioner's plea and subsequent sentence. V.R.C.P. 56. Petitioner's true relief, as sought here, is expungement. Expungement is governed by the statute sections of Title 13, chapter 230, §§ 7601–09.

The Legislature changed the requirements for expungement in the summer of 2025. The changes to the statute limited the crimes available for expungement, while expanding the number of crimes for which sealing is available. At the hearing, the court inquired whether Petitioner sought sealing as an alternative if expungement was not available. Petitioner maintained expungement was the only relief he sought. The docket contains denials of petitions based on the two-year bar on petitions imposed by 13 V.S.A. § 7605. See, e.g., *Entry Regarding Mot.* (July 20, 2022); *Entry Regarding Mot.* (Aug. 30, 2022). Therefore, Petitioner is aware that any petition for expungement which is denied will result in the court being unable to consider a renewed petition for the next two years, whether the petition is for expungement or sealing. 13 V.S.A. § 7605.

A charge which results in conviction may be expunged under 13 V.S.A. § 7602. However, the statute limits when a conviction may be expunged. Title 13 V.S.A. § 7602 states "[a] person may file a petition with the court requesting expungement of a criminal history record related to a conviction if the person was convicted of an offense for which the underlying conduct is no longer prohibited by law or designated as a criminal offense." 13 V.S.A. § 7602(a)(1). The Legislature has removed the qualifying crime component of expungement available under earlier statutes and made expungement available only when the Legislature has entirely repealed a criminal law. 13 V.S.A. § 7602(a)–(b). Petitioner pled to one count of 13 V.S.A. § 3002(1). Impersonating a police officer under 13 V.S.A. § 3002(1) still remains a criminal offense prohibited by law. Therefore, the court cannot expunge this conviction. The petition to expunge the conviction is denied.

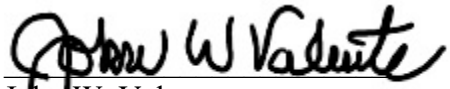
Order

Petitioner's Motion 30 is denied as moot.

Petitioner's Motion 28 has been converted into a petition for expungement and is denied.

Petitioner may renew the petition for expungement or sealing after or on September 17, 2027.

Electronically Signed 3/31/2026 8:56 AM pursuant to V.R.E.F. 9(d)



John W. Valente
Superior Court Judge

Bennington Unit

Case Summary

Case No. 1127-10-13 Bncr

State of Vermont v. Justin Gamache	§	Location:	**Bennington Unit**
	§	Filed on:	**10/14/2013**

Case Information

Case Type: Misdemeanor
Case Status: **04/01/2026 Disposed**

Offense

1. IMPERSONATION OF PUBLIC OFFICER

Statute	Degree	Offense Date	Filed Date
13 VSA 3002	MIS	08/17/2013	10/14/2013

Arrest
Date: 08/17/2013
Control #: 13c302401
Agency: 2009 - Shaftsbury VSP

Offense Reports
Agency: Shaftsbury VSP
96 Airport Road
Shaftsbury, VT, 05262

Related Cases

22-AP-123 (Appeal to Supreme Court)
23-AP-019 (Appeal to Supreme Court)
25-AP-317 (Appeal to Supreme Court)
25-AP-319 (Appeal to Supreme Court)

Statistical Closures

02/11/2014 Non Trial Disposition

Party Information

Plaintiff **Marthage, Erica A.**

Retained
802-442-8116(W)
erica.marthage@vermont.gov

Dillon, Sean
Retained
802-442-8116(W)
sean.dillon@vermont.gov

Defendant **Gamache, Justin Ames**
DOB: 12/27/1982

Pro Se
727-222-2902(W)
949-991-7403(H)
psycholgist.gamache@gmail.com

Case Events

04/01/2026
JEO
Notice to Parties
Recipients: Attorney Dillon, Sean;
Attorney Marthage, Erica A.

04/01/2026
JEO
Letter Sent
Sent To: Defendant Gamache, Justin Ames

04/01/2026
Entry Regarding Motion - Denied (Judicial Officer: Valente, John W.)

04/01/2026 *EO sent to parties in Motion #30 events*
Note

04/01/2026
Entry Regarding Motion - Denied (Judicial Officer: Valente, John W.)

03/20/2026 Update to Alliance One

03/18/2026 Update to Tax Offset

02/26/2026 Motion Under Advisement (Judicial Officer: Valente, John W.)

02/26/2026 Motion Under Advisement (Judicial Officer: Valente, John W.)

02/26/2026
Defendant remotely requests to have this case expunged. State opposes the requests. Motions under advisement
Hearing Notes

02/26/2026 Hearing Held - Motion (Judicial Officer: Valente, John W.)

01/21/2026 Update to Tax Offset

12/31/2025
JEO
Notice to Parties
Recipients: Attorney Marthage, Erica A.

12/31/2025
emailed JEO
Letter Sent
Sent To: Defendant Gamache, Justin Ames

12/31/2025
RE Motion #28 & #30
Judge's Entry Order (Judicial Officer: Valente, John W.)

12/31/2025 *Automated by RIS for SOP processing - Erica A. Marthage*
Sent to Case Parties

12/30/2025
"MEMORANDUM OF LAW REGARDING ULTRA VIRES CLASSIFICATION OF 13 V.S.A. 3002 AS A PREDICATE OFFENSE"
Document(s) Filed
Filed by: Defendant Gamache, Justin Ames

12/29/2025

"AFFIDAVIT OF JUSTIN AMES GAMACHE SUPPLEMENTAL STATEMENT OF FACT"
Document(s) Filed
Filed by: Defendant Gamache, Justin Ames

12/24/2025

"MEMORANDUM OF LAW REGARDING THE STATE'S FAILURE TO RESPOND AND FAILURE TO JOIN ISSUE"
Document(s) Filed
Filed by: Defendant Gamache, Justin Ames

12/24/2025

"AFFIDAVIT OF FACT OF JUSTIN-AMES GAMACHE"
Document(s) Filed
Filed by: Defendant Gamache, Justin Ames

12/23/2025

"DEFENDANT'S MEMORANDUM OF LAW IN RESPONSE TO THE STATE'S RELIANCE ON THE MARCH 27, 2023 ENTRY AND IN SUPPORT OF RULE 75 REVIEW OF PREDICATE MISCLASSIFICATION"
Document(s) Filed
Filed by: Defendant Gamache, Justin Ames

12/23/2025

"DEFENDANT'S REPLY TO STATE'S RESPONSE TO ENTRY REGARDING MOTION AND NOTICE OF CONTINUING DEFAULT UNDER V.R.C.P. 75"
Document(s) Filed
Filed by: Defendant Gamache, Justin Ames

12/17/2025

Response to Entry Regarding Motion
Document(s) Filed
Filed by: Attorney Marthage, Erica A.

12/11/2025

"NOTICE OF NON-PARTICIPATION AND FORMAL REVOCATION ADVISEMENT"
Document(s) Filed
Filed by: Defendant Gamache, Justin Ames

12/09/2025

Method: First Class Mail Documents Served: NOH 02/26/2026 for Motion #28 & 30 Tracking #: NA
Service Sent
To be Served: Defendant Gamache, Justin Ames

12/09/2025

EO #30 & NOH 2/26/26
Notice to Parties
Recipients: Attorney Marthage, Erica A.

12/09/2025 *Automated by RIS for SOP processing - Erica A. Marthage*
Sent to Case Parties

12/05/2025

"DEFENDANT'S ANSWER TO NOTICE OF HEARING AND OBJECTION TO ARREST-WARNING LANGUAGE"
Document(s) Filed
Filed by: Defendant Gamache, Justin Ames

12/03/2025

JEO; NOH 2/24/26
Notice to Parties
Recipients: Attorney Marthage, Erica A.

12/03/2025

emailed JEO; NOH 2/24/26
Letter Sent
Sent To: Defendant Gamache, Justin Ames

12/03/2025

Entry Regarding Motion - Motion to be Set for Hearing (Judicial Officer: Valente, John W.)

12/03/2025

Entry Regarding Motion - Motion to be Set for Hearing (Judicial Officer: Valente, John W.)

12/03/2025 *Automated by RIS for SOP processing - Erica A. Marthage*
Sent to Case Parties

11/23/2025 Sent to Tax Offset

11/22/2025 Referred to Tax Offset

10/16/2025
Answer or Response from State
Motion to Compel
Filed by: Defendant Gamache, Justin Ames
Index # 30

10/09/2025
"NOTICE OF FOLLOW-UP AND CLARIFICATION OF BEHAVIORAL EVIDENCE"
Document(s) Filed
Filed by: Defendant Gamache, Justin Ames

10/08/2025
"Supplemental_Notice_of_Evidence_and_Request_for_Judicial_Notice"
Document(s) Filed
Filed by: Defendant Gamache, Justin Ames

10/02/2025
"Certificate of Service (Notice of Non-Response)"
Document(s) Filed
Filed by: Defendant Gamache, Justin Ames

09/29/2025

"Affidavit_Memorandum of Law (Rule 75 Predicate Misclassification)_with Exhibits"
Document(s) Filed
Filed by: Defendant Gamache, Justin Ames

09/25/2025

"NOTICE OF LACK OF CONSENT TO USE OF SOCIAL SECURITY INFORMATION, OBJECTION TO ARBITRARY IMPOSITION OF FEES/FINES, AND PRESERVATION OF SUBSTANTIVE RIGHTS"
Document(s) Filed
Filed by: Defendant Gamache, Justin Ames

09/22/2025

"Supplemental Notice RE Prosecutorial Misconduct and Vacatur"
Document(s) Filed
Filed by: Defendant Gamache, Justin Ames

09/22/2025

"Answer & Memo RE Erroneous Denial"
Document(s) Filed
Filed by: Defendant Gamache, Justin Ames

09/22/2025

"Notice of Record Preservation"
Document(s) Filed
Filed by: Defendant Gamache, Justin Ames

09/19/2025

"Supplemental Memorandum of Law in Support of Motion to Vacate Plea"
Document(s) Filed
Filed by: Defendant Gamache, Justin Ames

09/18/2025

"STATEMENT OF LAW IN PLAIN TEXT"
Document(s) Filed
Filed by: Defendant Gamache, Justin Ames

09/18/2025

"NOTICE CLARIFYING NON-PRECLUSIVE EFFECT OF STAY DENIAL"
Document(s) Filed
Filed by: Defendant Gamache, Justin Ames

09/18/2025

"Answer & Memo of Law RE Stay Denial"
Document(s) Filed
Filed by: Defendant Gamache, Justin Ames

09/18/2025

JEO
Notice to Parties
Recipients: Attorney Marthage, Erica A.

09/18/2025

emailed JEO
Letter Sent
Sent To: Defendant Gamache, Justin Ames

09/18/2025

Entry Regarding Motion - Denied (Judicial Officer: Valente, John W.)

09/18/2025

Proceedings
Motion to Stay
Filed by: Defendant Gamache, Justin Ames
Index # 29

09/18/2025 *Automated by RIS for SOP processing - Erica A. Marthage*
Sent to Case Parties

09/17/2025

JEO
Notice to Parties
Recipients: Attorney Marthage, Erica A.

09/17/2025

Entry Regarding Motion - Waiting for Response (Judicial Officer: Valente, John W.)

09/17/2025

Motion for Judgment
Filed by: Defendant Gamache, Justin Ames
Index # 28

09/17/2025
"Rule 75 Complaint for Review of Governmental Action"
Document(s) Filed
Filed by: Defendant Gamache, Justin Ames

09/17/2025 *Automated by RIS for SOP processing - Erica A. Marthage*
Sent to Case Parties

09/16/2025
Extraordinary Relief Petition DENIED (25-AP-317)
Supreme Court Entry Order

09/16/2025
"Exhibits to Support"
Document(s) Filed
Filed by: Defendant Gamache, Justin Ames

09/15/2025 Update to Tax Offset

09/12/2025
"Combined Memorandum on Prosecutorial Misconduct and Extraordinary Circumstances"
Document(s) Filed
Filed by: Defendant Gamache, Justin Ames

09/12/2025 Update to Alliance One

09/11/2025
"Supplemental Affidavit"
Document(s) Filed
Filed by: Defendant Gamache, Justin Ames

09/11/2025
"MOTION FOR RECONSIDERATION OF ENTRY ORDER OF DISMISSAL" (Supreme Court 25-AP-317)
Document(s) Filed
Filed by: Defendant Gamache, Justin Ames

09/11/2025
"ANSWER TO ENTRY ORDER OF DISMISSAL"
Document(s) Filed
Filed by: Defendant Gamache, Justin Ames

09/11/2025
Supreme Court EO
Notice to Parties
Recipients: Attorney Marthage, Erica A.

09/11/2025
DISMISSED (25-AP-319)
Supreme Court Entry Order

09/11/2025
"MEMORANDUM OF RIGHTS IN SUPPORT OF NOTICE OF CORRECTION REGARDING PREDICATE OFFENSE CLASSIFICATION"
Document(s) Filed
Filed by: Defendant Gamache, Justin Ames

09/11/2025 *Automated by RIS for SOP processing - Erica A. Marthage*
Sent to Case Parties

09/10/2025
Application to Waive Filing and Service Fees Granted (Judicial Officer: Clerk, Court)
Party: Defendant Gamache, Justin Ames

09/10/2025 Update to Tax Offset

09/09/2025
Application to Waive Filing and Service Fees
Filed by: Defendant Gamache, Justin Ames
Index # 27

09/09/2025
"NOTICE OF PROTECTIVE ORDER REGARDING PETITIONER'S ADDRESS"
Document(s) Filed
Filed by: Defendant Gamache, Justin Ames

09/09/2025 No Collections - Case on Appeal

09/09/2025

Notice of Appeal to Supreme Court
Filed by: Defendant Gamache, Justin Ames
Appellee: Attorney Marthage, Erica A.

09/09/2025

"ORDER ON NOTICE OF CORRECTION AND MEMORANDUM OF RIGHTS"
Document(s) Filed
Filed by: Defendant Gamache, Justin Ames

09/09/2025

"AFFIDAVIT OF RECORD REVIEW"
Document(s) Filed
Filed by: Defendant Gamache, Justin Ames

09/09/2025

"NOTICE OF CORRECTION REGARDING PREDICATE OFFENSE CLASSIFICATION (RETROACTIVE)"
Document(s) Filed
Filed by: Defendant Gamache, Justin Ames

09/09/2025

"PETITION FOR WRIT OF MANDAMUS AND/OR PROHIBITION'
Document(s) Filed
Filed by: Defendant Gamache, Justin Ames

09/05/2025

"ERROR AND MISAPPLICATION OF LAW"
Document(s) Filed
Filed by: Defendant Gamache, Justin Ames

09/05/2025

"NOTICE OF INVALID PLEA AND DEMAND FOR VACATUR"
Document(s) Filed
Filed by: Defendant Gamache, Justin Ames

09/04/2025

"Administrative cleanup for 1127-10-Bncr"
Document(s) Filed
Filed by: Defendant Gamache, Justin Ames

08/26/2025

"MEMORANDUM OF LAW IN PUBLISHING THIS FOR THE RECORD"
Document(s) Filed
Filed by: Defendant Gamache, Justin Ames

08/26/2025

"MEMORANDUM OF LAW REGARDING DEFENDANT'S DISABILITY STATUS AND ADA PROTECTIONS"
Document(s) Filed
Filed by: Defendant Gamache, Justin Ames

11/22/2024 Sent to Tax Offset

11/19/2024 Referred to Tax Offset

11/27/2023 Sent to Tax Offset

11/27/2023 Referred to Tax Offset

10/23/2023

"Memorandum of Law"
Document(s) Filed
Filed by: Defendant Gamache, Justin Ames

10/23/2023

"The Concern of Residency in Vermont 2013"
Document(s) Filed
Filed by: Defendant Gamache, Justin Ames

10/04/2023

"Fifth Amendment"
Document(s) Filed
Filed by: Defendant Gamache, Justin Ames

09/29/2023

"Opinion of Facts/ Removal as Defendant"
Document(s) Filed
Filed by: Defendant Gamache, Justin Ames

09/28/2023

"Intent to Remove Crime Record"
Document(s) Filed
Filed by: Defendant Gamache, Justin Ames

09/25/2023

"Demanding Removal Now"
Document(s) Filed
Filed by: Defendant Gamache, Justin Ames

09/22/2023

"Reservation of Rights"
Document(s) Filed
Filed by: Defendant Gamache, Justin Ames

09/20/2023

"Affidavit"; "Complaint"
Document(s) Filed
Filed by: Defendant Gamache, Justin Ames

09/11/2023

"Statement"
Document(s) Filed
Filed by: Defendant Gamache, Justin Ames

09/08/2023 Update to Alliance One

09/01/2023 Sent to Alliance One

08/31/2023

"Default Judgment"
Document(s) Filed
Filed by: Defendant Gamache, Justin Ames

08/30/2023 Referred to Alliance One

08/24/2023

"Continued Statements"
Document(s) Filed
Filed by: Defendant Gamache, Justin Ames

08/18/2023

"Case Dismissed"; "Synopsis Completed"; "Recusal of Judge KMC"
Document(s) Filed
Filed by: Defendant Gamache, Justin Ames

08/17/2023

"Request for Removal" & "Redress of Grievances"
Document(s) Filed
Filed by: Defendant Gamache, Justin Ames

08/07/2023

New Address filed
Filed by: Defendant Gamache, Justin Ames

08/02/2023

Appeal dismissed per Appellant request
Supreme Court Entry Order

07/27/2023

Synopsis: Completed Investigation on Case Number 1127-10-13 Bncr
Document(s) Filed
Filed by: Defendant Gamache, Justin Ames

07/07/2023

Memorandum
Document(s) Filed
Filed by: Defendant Gamache, Justin Ames

07/06/2023

Memorandum
Document(s) Filed
Filed by: Defendant Gamache, Justin Ames

06/29/2023

Memorandum RE Suppression
Document(s) Filed
Filed by: Defendant Gamache, Justin Ames

06/29/2023

Memorandum Revoking Courts Right
Document(s) Filed
Filed by: Defendant Gamache, Justin Ames

06/26/2023

Memorandum to Support Motion to Dismiss
Document(s) Filed
Filed by: Defendant Gamache, Justin Ames

06/26/2023

Motion to Dismiss Charges
Document(s) Filed
Filed by: Defendant Gamache, Justin Ames

06/13/2023

Denial
Document(s) Filed
Filed by: Defendant Gamache, Justin Ames

06/12/2023

Appellant's motion to withdraw his appeal is GRANTED.
Supreme Court Entry Order

06/06/2023

Rejection Letter
Document(s) Filed
Filed by: Defendant Gamache, Justin Ames

05/10/2023

Motion to Recuse Kerry A. McDonald (motion mailed to judge's home address)
Document(s) Filed
Filed by: Defendant Gamache, Justin Ames

04/10/2023

Notice of Removal & Recusal of Judge McDonald-Cady
Document(s) Filed
Filed by: Defendant Gamache, Justin Ames

03/28/2023

Notice of Removal
Document(s) Filed
Filed by: Defendant Gamache, Justin Ames

03/28/2023

Recusal of Judge Kerry McDonald-Cady
Document(s) Filed
Filed by: Defendant Gamache, Justin Ames

03/27/2023

JEO
Notice to Parties
Recipients: Attorney Burke, Alexander N.

03/27/2023

Emailed JEO
Letter Sent
Sent To: Defendant Gamache, Justin Ames

03/27/2023

Entry Regarding Motion - Denied (Judicial Officer: McDonald-Cady, Kerry Ann)

03/27/2023

Motion to Dismiss
Notice to Parties
Recipients: Attorney Burke, Alexander N.

03/27/2023

Motion to Dismiss
Filed by: Defendant Gamache, Justin Ames
Index # 26

03/27/2023 *Automated by RIS for SOP processing - Alexander N. Burke*
Sent to Case Parties

03/27/2023 *Automated by RIS for SOP processing - Alexander N. Burke*
Sent to Case Parties

03/24/2023
Final Word and Rejection
Document(s) Filed
Filed by: Defendant Gamache, Justin Ames

03/24/2023 *Denied on the record.*
Entry Regarding Motion - Denied (Judicial Officer: McDonald-Cady, Kerry Ann)

03/24/2023
Court informs the defendant about possible contempt hearings in the future if more motions to expunge are filed.
Entry Order (Judicial Officer: McDonald-Cady, Kerry Ann)

03/24/2023 *Hybrid*
Hearing Held - Motion (Judicial Officer: McDonald-Cady, Kerry Ann)

03/21/2023
Filed as "Motion to Respect Rule 60"
Document(s) Filed
Filed by: Defendant Gamache, Justin Ames

03/15/2023
Rejection Letter
Document(s) Filed
Filed by: Defendant Gamache, Justin Ames

03/10/2023
Denial on Motion to Recuse
Document(s) Filed
Filed by: Defendant Gamache, Justin Ames

03/10/2023
Entry Regarding Motion - Denied (Judicial Officer: Zonay, Thomas A.)

03/10/2023

JEO
Notice to Parties
Recipients: Attorney Burke, Alexander N.

03/10/2023

Emailed: JEO
Letter Sent
Sent To: Defendant Gamache, Justin Ames

03/10/2023 *Automated by RIS for SOP processing - Alexander N. Burke*
Sent to Case Parties

03/08/2023 Motion with Judge (Judicial Officer: Zonay, Thomas A.)

03/08/2023

JEO
Notice to Parties
Recipients: Attorney Burke, Alexander N.

03/08/2023

Emailed: JEO
Letter Sent
Sent To: Defendant Gamache, Justin Ames

03/08/2023

Entry Regarding Motion - Deferred (Judicial Officer: McDonald-Cady, Kerry Ann)

03/08/2023

Motion to Recuse
Notice to Parties
Recipients: Attorney Burke, Alexander N.

03/08/2023 *Automated by RIS for SOP processing - Alexander N. Burke*
Sent to Case Parties

03/08/2023 *Automated by RIS for SOP processing - Alexander N. Burke*
Sent to Case Parties

03/02/2023

Motion to Recuse Judge
Filed by: Defendant Gamache, Justin Ames
Index # 25

02/24/2023

Adequate Docketing Statment
Document(s) Filed
Filed by: Defendant Gamache, Justin Ames

02/24/2023

JEO
Notice to Parties
Recipients: Attorney Burke, Alexander N.

02/24/2023

Emailed JEO
Letter Sent
Sent To: Defendant Gamache, Justin Ames

02/24/2023 *Automated by RIS for SOP processing - Alexander N. Burke*
Sent to Case Parties

02/23/2023

Entry Regarding Motion - Denied (Judicial Officer: McDonald-Cady, Kerry Ann)

02/19/2023

Hearing
Motion to Vacate
Filed by: Defendant Gamache, Justin Ames
Index # 24

02/09/2023 *Def's Official Opt Out Notice sent to the Supreme Court.*
Copies Sent

02/08/2023

Official Opt Out Notice
Document(s) Filed
Filed by: Defendant Gamache, Justin Ames

01/12/2023

Legal Letter Regarding Case No 1127-10-13 Bncr & Notice to Cease and Desist file with VT Supreme Court on 11/7/22
Document(s) Filed
Filed by: Defendant Gamache, Justin Ames

01/11/2023

Notice to Cease and Cease Re: case No. 1127-10-13 Bncr (Vermont Supreme Court: 22-AP-123)
Document(s) Filed
Filed by: Defendant Gamache, Justin Ames

01/05/2023

Notice to Cease and Desist
Document(s) Filed
Filed by: Defendant Gamache, Justin Ames

01/04/2023

On January 3, 2023, appellant flied several documents with this Court purporting to relate to case number 22-AP-123. The Court issued its final decision in 22-AP-123 on September 16, 2022, and appellant's motion for reargument was denied on September 30, 2022. The appeal is therefore closed. The Court will not consider any further motions in this appeal.
Supreme Court Appeal Closed Documents

12/24/2022

Petition to Expunge Or Seal dated 12/19/22 EO #23
Document(s) Filed
Filed by: Defendant Gamache, Justin Ames

12/24/2022

Notice of Appeal to Supreme Court
Filed by: Defendant Gamache, Justin Ames
Appellee: Plaintiff State of Vermont

12/23/2022

Reply to Motion
Filed by: Defendant Gamache, Justin Ames

12/23/2022

Email Confirmation - Documents Received
Document(s) Filed
Filed by: Defendant Gamache, Justin Ames

12/23/2022

JEO; NOH 3/24/23
Notice to Parties
Recipients: Attorney Burke, Alexander N.

12/23/2022

Emailed to 3 known email addresses: JEO; NOH 3/24/23; WebEx
Sent to Case Parties
Sent to: Defendant Gamache, Justin Ames

12/23/2022 *Automated by RIS for SOP processing - Alexander N. Burke*
Sent to Case Parties

12/22/2022

Entry Regarding Motion - Motion to be Set for Hearing
(Judicial Officer: McDonald-Cady, Kerry Ann)

12/19/2022

Motion to Expunge
Filed by: Defendant Gamache, Justin Ames
Index # 23

11/19/2022

Affidavit USPS Green Card
Affidavit
Filed by: Defendant Gamache, Justin Ames

11/14/2022

Notice to Cease and Desist
Document(s) Filed
Filed by: Defendant Gamache, Justin Ames

11/14/2022

Entry Regarding Motion - Denied (Judicial Officer: McDonald-Cady, Kerry Ann)

11/14/2022

Entry Regarding Motion - Denied (Judicial Officer: McDonald-Cady, Kerry Ann)

11/14/2022

JEO
Notice to Parties
Recipients: Attorney Burke, Alexander N.

11/14/2022

JEO
Sent to Case Parties
Sent to: Defendant Gamache, Justin Ames

11/14/2022 *Automated by RIS for SOP processing - Alexander N. Burke*
Sent to Case Parties

11/10/2022

Motion to Dismiss
Filed by: Defendant Gamache, Justin Ames
Index # 22

11/07/2022

Motion to Expunge
Filed by: Defendant Gamache, Justin Ames
Index # 21

11/04/2022

JEO
Notice to Parties
Recipients: Attorney Burke, Alexander N.

11/04/2022

JEO
Sent to Case Parties
Sent to: Defendant Gamache, Justin Ames

11/04/2022 *Automated by RIS for SOP processing - Alexander N. Burke*
Sent to Case Parties

11/03/2022

Notice to Cease and Desist
Document(s) Filed
Filed by: Defendant Gamache, Justin Ames

11/03/2022

Entry Regarding Motion - Denied (Judicial Officer: McDonald-Cady, Kerry Ann)

11/03/2022

Motion to Expunge & Attachment
Notice to Parties
Recipients: Attorney Burke, Alexander N.

11/03/2022

Attachment to Motion to Expunge
Document(s) Filed
Filed by: Defendant Gamache, Justin Ames

11/03/2022

Motion to Expunge
Filed by: Defendant Gamache, Justin Ames
Index # 20

11/03/2022 *Automated by RIS for SOP processing - Alexander N. Burke*
Sent to Case Parties

11/02/2022

JEO
Sent to Case Parties
Sent to: Defendant Gamache, Justin Ames

11/02/2022

Entry Regarding Motion - Denied (Judicial Officer: McDonald-Cady, Kerry Ann)

11/02/2022

JEO
Notice to Parties
Recipients: Attorney Burke, Alexander N.

11/02/2022 *Automated by RIS for SOP processing - Alexander N. Burke*
Sent to Case Parties

11/01/2022
Motion to Expunge
Notice to Parties
Recipients: Attorney Burke, Alexander N.

11/01/2022 *Automated by RIS for SOP processing - Alexander N. Burke*
Sent to Case Parties

10/28/2022
Motion to Expunge
Filed by: Defendant Gamache, Justin Ames
Index # 19

10/13/2022
Final Supreme Court decision 9/16/22
Notice to Parties
Recipients: Attorney Burke, Alexander N.

10/13/2022 Case Closed

10/13/2022 *Automated by RIS for SOP processing - Alexander N. Burke*
Sent to Case Parties

09/28/2022
Final Decision dated 9/16/22- AFFIRMED
Supreme Court Entry Order

08/30/2022
Entry Regarding Motion - Denied (Judicial Officer: Corsones, Cortland T.)

08/30/2022
Entry Regarding Motion - Denied (Judicial Officer: Corsones, Cortland T.)

08/23/2022 *Motions 17 and 18*
Motion with Judge (Judicial Officer: Corsones, Cortland T.)

08/19/2022

Objection to Denial of Expungment Revoking of Apology to VSP
Document(s) Filed
Filed by: Defendant Gamache, Justin Ames

08/19/2022

Motion to Expunge
Filed by: Defendant Gamache, Justin Ames
Index # 18

08/19/2022

Motion to Expunge
Filed by: Defendant Gamache, Justin Ames
Index # 17

07/28/2022

Objection to Denial of Motion to Expunge
Document(s) Filed
Filed by: Defendant Gamache, Justin Ames

07/27/2022

Entry Regarding Motion - Denied (Judicial Officer: Corsones, Cortland T.)

07/27/2022

JEO
Notice to Parties
Recipients: Attorney Burke, Alexander N.

07/27/2022

Emailed JEO to Def
Letter Sent
Sent To: Defendant Gamache, Justin Ames

07/27/2022

copy of Motion to Expunge and Objection
Notice to Parties
Recipients: Attorney Burke, Alexander N.

07/27/2022 *Automated by RIS for SOP processing - Alexander N. Burke*
Sent to Case Parties

07/27/2022 *Automated by RIS for SOP processing - Alexander N. Burke*
Sent to Case Parties

07/26/2022
Objection to Judge's Denial
Document(s) Filed
Filed by: Defendant Gamache, Justin Ames

07/26/2022
Motion to Expunge
Filed by: Defendant Gamache, Justin Ames
Index # 16

07/21/2022
The following signatures are to support the expungement/sealing of case no 1127-10-13 Bncr
Document(s) Filed
Filed by: Defendant Gamache, Justin Ames

07/20/2022
Objection to Judge's Denial
Document(s) Filed
Filed by: Defendant Gamache, Justin Ames

07/20/2022
JEO
Notice to Parties
Recipients: Attorney Burke, Alexander N.

07/20/2022
Emailed JEO to Def
Letter Sent
Sent To: Defendant Gamache, Justin Ames

07/20/2022
Entry Regarding Motion - Denied (Judicial Officer: Corsones, Cortland T.)

07/20/2022 *Automated by RIS for SOP processing - Alexander N. Burke*
Sent to Case Parties

07/01/2022

Motion to Expunge
Filed by: Defendant Gamache, Justin Ames
Index # 15

07/01/2022

Withdrawal of Guilty Plea
Document(s) Filed
Filed by: Defendant Gamache, Justin Ames

06/28/2022

Withdrawl of Guilty Plea
Document(s) Filed
Filed by: Defendant Gamache, Justin Ames

06/27/2022 *"Return to sender; Not deliverable as addressed; Unable to forward"*
Returned Mail
Party: Defendant Gamache, Justin Ames

06/13/2022

Correspondance to Decision-Affidavit of Truth
Document(s) Filed
Filed by: Defendant Gamache, Justin Ames

05/31/2022 *EO #9*
Sent to Case Parties
Sent to: Defendant Gamache, Justin Ames

05/13/2022

Entry Regarding Motion - Denied (Judicial Officer: Corsones, Cortland T.)

05/13/2022

Recusal of Judge Corsones-Not A Motion
Document(s) Filed
Filed by: Defendant Gamache, Justin Ames

05/10/2022

Correspondence to Decision-Affidavit of Truth
Document(s) Filed
Filed by: Defendant Gamache, Justin Ames

05/10/2022
Certificate of Service
Filed by: Defendant Gamache, Justin Ames

05/10/2022
Returned Mail
Party: Defendant Gamache, Justin Ames

05/06/2022
Entry Regarding Motion - Deferred (Judicial Officer: Corsones, Cortland T.)

05/06/2022 *Decision on motion to recuse*
Letter Sent
Sent To: Defendant Gamache, Justin Ames

05/06/2022
JEO
Notice to Parties
Recipients: Attorney Burke, Alexander N.

05/06/2022 *Deferred to Chief Superior Judge*
Judge's Entry Order (Judicial Officer: Corsones, Cortland T.)

05/06/2022
Entry Regarding Motion - Denied (Judicial Officer: Zonay, Thomas A.)

05/06/2022 *Automated by RIS for SOP processing - Alexander N. Burke*
Sent to Case Parties

05/04/2022
New Address filed
Filed by: Defendant Gamache, Justin Ames

05/04/2022
Affidavit of Truth and Fact
Affidavit
Filed by: Defendant Gamache, Justin Ames

05/04/2022

Impersonation of an Police Officer-Moot Case Not Closed
Document(s) Filed
Filed by: Defendant Gamache, Justin Ames

05/04/2022 Motion with Judge (Judicial Officer: Corsones, Cortland T.)

04/29/2022 *Physical file sent to Supreme Court*
Note

04/29/2022
Application to Waive Filing and Service Fees Granted (Judicial Officer: Clerk, Court)
Party: Defendant Gamache, Justin Ames

04/28/2022

Affidavit of Default, cos/proof of service
Document(s) Filed
Filed by: Defendant Gamache, Justin Ames

04/27/2022

Application to Waive Filing and Service Fees
Filed by: Defendant Gamache, Justin Ames
Index # 14

04/27/2022

Notice of Appeal to Supreme Court
Filed by: Defendant Gamache, Justin Ames
Appellee: Attorney Burke, Alexander N.;
Plaintiff State of Vermont

04/27/2022 Motion with Judge (Judicial Officer: Corsones, Cortland T.)

04/21/2022 Case Closed

04/21/2022

JEOs for motions 9,10,11
Notice to Parties
Recipients: Attorney Burke, Alexander N.

04/21/2022 *EOS for motions 9,10,11*
Sent to Case Parties
Sent to: Defendant Gamache, Justin Ames

04/21/2022
Entry Regarding Motion - Denied (Judicial Officer: Corsones, Cortland T.)

04/21/2022
Entry Regarding Motion - Moot (Judicial Officer: Corsones, Cortland T.)

04/21/2022 *Automated by RIS for SOP processing - Alexander N. Burke*
Sent to Case Parties

04/20/2022
DECLARATION OF INDEPENDENCE FROM STATE OF VERMONT
Document(s) Filed
Filed by: Defendant Gamache, Justin Ames

04/20/2022
Motion to Recuse Judge
Filed by: Defendant Gamache, Justin Ames
Index # 13

04/20/2022 Certificate of Service
Filed by: Defendant Gamache, Justin Ames

04/19/2022
Certificate of Service
Filed by: Defendant Gamache, Justin Ames

04/19/2022
Motion to Suppress
Filed by: Defendant Gamache, Justin Ames
Index # 12

04/14/2022
Entry Regarding Motion - Denied (Judicial Officer: Corsones, Cortland T.)

04/06/2022
Entry Regarding Motion - Waiting for Response (Judicial Officer: Corsones, Cortland T.)

04/06/2022
motions 10-11
Entry Regarding Motion - Waiting for Response (Judicial Officer: Corsones, Cortland T.)

04/05/2022
Motions to Expunge/Dismiss and For Discovery.
Notice to Parties
Recipients: Attorney Burke, Alexander N.

04/05/2022
Motion to Dismiss
Filed by: Defendant Gamache, Justin Ames
Index # 11

04/05/2022
Certificate of Service
Filed by: Defendant Gamache, Justin Ames

04/05/2022
Motion for Discovery
Filed by: Defendant Gamache, Justin Ames
Index # 10

04/05/2022 *Automated by RIS for SOP processing - Alexander N. Burke*
Sent to Case Parties

03/29/2022
Entry Regarding Motion - Waiting for Response (Judicial Officer: Corsones, Cortland T.)

03/24/2022
Expunge/Seal
Motion to Expunge
Filed by: Defendant Gamache, Justin Ames
Index # 9

04/09/2021
Document(s) Filed
Filed by: Defendant Gamache, Justin Ames

09/14/2020
Request for Access to Court Record
Document(s) Filed
Filed by: Defendant Gamache, Justin Ames

07/29/2020 *Event close Case Status Code dis Case Status Disposed*
Conversion Status

07/28/2020 *Hearing Type: Motion Hearing*
Last Hearing Held

02/11/2014 *Event close Case Status Code dis Case Status Disposed*
Case Closed

10/21/2013 *Hearing Type: Arraignment*
First Hearing Held

10/14/2013

Docket # 1127-10-13 Bncr Case Name State vs. Gamache, Justin VTADS Module cr VTADS Sub-Module mis Track
Conversion Open

10/14/2013 *Hearing Type: Arraignment Dispute(s): 1*
First Hearing Set

Dispositions

02/11/2014 **Reparative Board Referral** (Judicial Officer: Judge, Superior Court)
1. IMPERSONATION OF PUBLIC OFFICER
08/17/2013 (MIS) 13 VSA 3002 (13V3002)

02/11/2014 **Disposition**
1. IMPERSONATION OF PUBLIC OFFICER
Guilty

12/30/2013 **Plea**
Gamache, Justin Ames
1. IMPERSONATION OF PUBLIC OFFICER
Guilty

Hearings

02/26/2026

Motion Hearing (9:30 AM) (Judicial Officer: Valente, John W.)
Rescheduled from 02/24/2026
02/24/2026 Reset by Court to 02/26/2026
MINUTES - 02/26/2026
Hearing Held - Motion (Judicial Officer: Valente, John W.)

Defendant remotely requests to have this case expunged. State opposes the requests. Motions under advisement
Hearing Notes

Hearing Held; Atty Sean Dillon for the state
Parties Present: Defendant Gamache, Justin Ames
Hearing Held

03/24/2023

Motion Hearing (11:00 AM) (Judicial Officer: McDonald-Cady, Kerry Ann)
*** Defendant's participation required*
MINUTES - 03/24/2023

Hybrid
Hearing Held - Motion (Judicial Officer: McDonald-Cady, Kerry Ann)

Court informs the defendant about possible contempt hearings in the future if more motions to expunge are filed.
Entry Order (Judicial Officer: McDonald-Cady, Kerry Ann)

Hearing Held; Atty Erica Marthage in courtroom. Def on webex
Parties Present: Defendant Gamache, Justin Ames
Hearing Held

Other Documents

04/29/2022
Criminal Document
Case Summary as of 4/29/22
3 Pages

04/29/2022
Criminal Document

Appeal Volume 1
39 Pages

01/12/2023
Criminal Document
Appeal Volume 1
187 Pages

09/09/2025
Criminal Document
1127-10-13 Bncr Case Summary as of 9/9/25
15 Pages

Vermont Superior Court Bennington Criminal Division

Docket No. 1127-10-13 Bncr State vs. Gamache, Justin 1127-10-13 Bncr

Prosecutor: Alexander Burke
Motions pdg:
Bail set:
Incarcerated: released
Conditions:
Case Status:
Disposed
Next Hearing:

Defendant: Justin Gamache
DOB: 12/27/1982
POB: Halifax, VT
Atty:
Aliases:
Address: PO Box 6067
Hudson FL 34674

Dspt	Docket No.	Ct.	Statute	F/M/O	
1	1127-10-13 Bncr	1	13 3002 IMPERSONATION OF PUBLIC OFFICER	mis	02/11/14 Plea guilty

10/14/13 Information and Affidavit filed on 1 dispute.
Dispute 1 for Docket No. 1127-10-13 Bncr Count 1, IMPERSONATION OF PUBLIC OFFICER, Misdemeanor, 13 V.S.A. 3002. Alleged offense date: 08/17/13. Arrest/citation date: 08/17/13 VSP-Shaftsbury.
Arraignment set for 10/21/13 at 08:15 AM.

10/15/13 Probable Cause found by Judge Nancy S. Corsones on dispute 1.

10/21/13 Public Defender requested.
Attorney assigned: Frederick Bragdon.
Request granted for public defender. 50.00 to be paid; Payment Order No. 40948.
Arraignment held by Nancy S. Corsones. (CDVIDEO).
Copy of Affidavit and Information given to defendant. 24 hour rule waived.
Reading of Information waived. Defendant pleads not guilty on dispute 1. Pre-trial discovery order issued.
Calendar Call set for 11/18/13 at 01:30 PM.
Conditions set by Nancy S. Corsones on dispute 1. Bail Amount: 0.00 set. Condition[s] 1-3,14-15,17 imposed; No.14: not to have contact with Joseph Mangiacotti; No.15: not to harass Joseph Mangiacotti; No.17: subject to arrest without warrant if does not abide by Condition[s] 14,15.

10/23/13 Attorney assigned: Katherine M. Lamson.

11/18/13 Payment Order no. 40948 paid in full.
Calendar Call held by Nancy S. Corsones. (DIGITAL).
Attorney assigned: Frederick Bragdon.
Calendar Call set for 12/30/13 at 01:30 PM.

12/30/13 Change of plea held by Nancy S. Corsones. (CDVIDEO).
Defendant pleads guilty on dispute 1. Plea agreement filed. Judge Nancy S. Corsones accepts plea after finding it to be voluntary and made with knowledge and understanding of the consequences and after a knowing waiver of constitutional rights. Plea found to have a factual basis. Adjudication of guilty entered.
Sentence on dispute 1:. Court recommends: Pursuant to 13 VSA Sec. 7030(a)(2), the defendant is sentenced to the Reparative Board. $47.00 surcharge assessed. $100.00 Special Investigative Unit surcharge assessed.
Status Conference set for 03/24/14 at 01:30 PM. STATUS ON REPARATIVE BOARD SENTENCE.
Deferred payment agreement no. 41376 issued: payments to be made. Defendant to pay fine in full by 03/03/14 or appear for a Show Cause

Hearing on at.
01/13/14 Deferred payment agreement no. 41376 issued: payments to be made. Defendant to pay fine in full by 03/03/14 or appear for a Show Cause Hearing on at.
02/07/14 Payment Order no. 41376 paid in full.
02/11/14 1 document filed for party : Ltr re: successfully completed repboard.
Status Conference scheduled for 03/24/14 cancelled: case settled. Case closed.
Judgment of Guilty entered by Judge Nancy S. Corsones on dispute 1. Case closed.
03/07/15 3 documents filed for party : Pro Se letter dischargeing student loan; debt to the Bennington Public Defender’s; Office.
Attorney Frederick Bragdon withdraws.
03/16/16 2 documents filed for party 1: Letter re: Pleads to the Fifth; amendement.
05/05/16 1 document filed for party 1: Notice to invoke the Fifthe Amendement.
09/01/17 Motion To Expunge/Seal Record filed by Defendant Justin Gamache on dispute 1. Motion To Expunge/Seal Record given to judge.
Motion 1 (To Expunge/Seal Record) to wait for memo in opposition per by David A. Howard. Unless state files written response with in 10 calendar days, the motion will be ruled on without hearing.
09/12/17 A response was filed to Motion To Expunge/Seal Record filed by Attorney Alexander Burke for Plaintiff State.
1 document filed by Attorney Alexander Burke for party 2: State Does Not Agree to Expunge/Seal.
09/14/17 1 document filed for party 1: Confidential Motion to Expunge REcord.
09/19/17 Motion 1 (To Expunge/Seal Record) denied by David A. Howard. The motion is DENIED. The offense is not a qualifying crime under 13 V.S.A. 7601(4))A) as it is a predicate offense under 7601(3) and not eligible for s ealing or expungement.
Case closed.
10/30/17 Motion To Expunge/Seal Record filed by Defendant Justin Gamache on dispute 1. Motion To Expunge/Seal Record given to judge.
12/05/17 Motion 2 (To Expunge/Seal Record) to wait for memo in opposition per by David A. Howard. Unless state files written response with in 10 calendar days, the motion will be ruled on without hearing.
12/06/17 1 document filed by Attorney Alexander Burke for party 2: Response to motion-OBJECTS.
A response was filed to Motion To Expunge/Seal Record filed by Attorney Alexander Burke for Plaintiff State.
12/08/17 Motion 2 (To Expunge/Seal Record) denied by David A. Howard. The motion is DENIED. As the court previ ously ruled in a similar motion, this of fense is not a qualifying crime under 13 V.S.A. 7601(4)(A) for expungement o r sealing as it is a predicate offense under 7601(3). A predicate offense is one that can be used to enhance the p enalty of a future conviction for such a n offense. Under 13 V.S.A. 3002(2), a second conviction for impersonating an o fficer has an enhanced penalty due to a first conviction. So Defendants convict ion in this docket is a predicate offens e and not eligible for relief.
Case closed.
12/18/17 A response was filed to Motion To Expunge/Seal Record filed by Defendant Justin Gamache.
12/26/17 A response was filed to Motion To Expunge/Seal Record filed by Defendant Justin Gamache.
12/28/17 Motion To Expunge or Seal Record filed by Defendant Justin Gamache on dispute 1. Motion To Expunge or Seal Record given to judge.
01/05/18 1 document filed for party 1: Prose letter.
01/12/18 Motion 3 (To Expunge or Seal Record) denied by David A. Howard. The motion is DENIED. The court refers t o its decision of Dec. 8, 2017, on a sim ilar motion.
Case closed.
01/23/18 Entry Order: Supreme Court Docket No. 2018-032.

02/09/18 1 document filed for party 1: Prose letter from defendant.
02/14/18 1 document filed for party 1: Prose letter from defendant.
02/15/18 1 document filed for party 1: Prose letter from defendant.
02/23/18 Motion To Expunge/Seal Record filed by Defendant Justin Gamache on dispute 1. Motion To Expunge/Seal Record given to judge.
02/26/18 Entry Order: Appellant’s brief and printed case must be filed by March 16, 2018. Failure to comply with this order may result in dis missal of the appeal without further notice.
02/27/18 1 document filed for party 1: Notice of Non-Compliance letter.
02/28/18 Notice of Appeal from party 1.
03/05/18 1 document filed for party 1: Prose letter from defendant.
1 document filed for party 1: Prose letter filed.
Note: All filings and notice of appeal sent to Supreme Court. copies to parties.
04/12/18 Entry Order: Appellant’s request to reopen the above captioned appeal is denied.
Case closed.
05/18/18 4 documents filed for party : Certified Copy of Entry Order; Trial Court File; Supreme Court File; Dismissed for failure to make progress.
08/27/18 1 document filed for party 1: Opt-out notice.
10/03/18 1 document filed for party 1: Opt-Out Notice.
10/18/18 1 document filed for party 1: Opt out Notice with cut up license.
11/15/18 Motion to Expunge or Seal filed by Defendant Justin Gamache on dispute 1. Motion to Expunge or Seal given to judge.
12/21/18 Motion to Expunge or Seal filed by Defendant Justin Gamache on dispute 1. Motion to Expunge or Seal given to judge.
02/22/19 Motion 4 (To Expunge/Seal Record) to be set for hearing per; Motion 5 (to Expunge or Seal) to be set for hearing per; Motion 6 (to Expunge or Seal) to be set for hearing per by William D. Cohen. Set for 1 hour hearing.
03/13/19 Motion Hearing set for 05/09/19 at 03:00 PM.
03/21/19 1 document filed for party 1: Letter of attendence for motion hearing.
04/26/19 1 document filed for party 1: Prose Ltr re: non conviction.
05/02/19 1 document filed for party 1: Prose ltr: not going to appear for 5/9.
05/09/19 Motion Hearing held by William D. Cohen. (CDVIDEO). Motion 4-6: Under Advisement.
Motion 4 (To Expunge/Seal Record) denied; Motion 5 (to Expunge or Seal) denied; Motion 6 (to Expunge or Seal) denied by David A. Barra. The matter came before the court for hea ring defendants motion to expunge or se al. The State of Vermont was represented by Deputy States Attorney Alexander Bu rke. The defendant was not present in pe rson or by phone. The State argued that the underlying cha rge was a predicate offense and therefor e was ineligible for expungement or seal ing pursuant to 13 V.S.A. 7601. Defendants offense of impersonating a p ublic officer in violation of 13 V.S.A 3002 is a predicate offense as defined b y 13 V.S.A. 7601(3). Therefore, petitio ner is not entitled to the relief he see ks. THE MOTION IS DENIED.
05/10/19 1 document filed for party 1: Contract of Revoking Signature.
05/22/19 1 document filed for party 1: Ltr: No longer lives in State of VT.
05/30/19 1 document filed for party 1: Entry regarding Motion.
Motion Remove Name and Order Payment filed by Defendant Justin Gamache on dispute 1. Motion Remove Name and Order Payment given to judge.
06/17/19 1 document filed for party 1: Entry Regarding Motion.
09/04/19 Motion 7 (Remove Name and Order Payment) denied by John W. Valente. Motions claims quilty plea was made by force or from as such. The proper procedural claims is for post conviction relief in the civil division. This motion must be denied.
Case closed.
10/24/19 1 document filed for party 1: Prose AFfidavit filed.
11/12/19 1 document filed for party 1: Affidavit filed with VT Supreme Court.

11/22/19 1 document filed for party 1: Letter dismissing charges.
12/02/19 1 document filed for party 1: Letter of continued Intent.
12/05/19 1 document filed for party 1: Counterclaim.
04/16/20 Motion to Expunge or Seal filed by Defendant Justin Gamache on dispute 1. Motion to Expunge or Seal given to judge.
04/23/20 Motion 8 (to Expunge or Seal) to wait for memo in opposition per by John W. Valente. State shall file a response within 30 days.
04/27/20 A response was filed to Motion to Expunge or Seal filed by Attorney Alexander Burke for Plaintiff State.
05/08/20 1 document filed for party 1: AFFIDAVIT.
05/11/20 Motion 8 (to Expunge or Seal) to be set for hearing per by John W. Valente. The Clerk shall schedule a MOTION HEARIN G. So ordered.
Motion Hearing set for 06/23/20 at 11:30 AM.
06/11/20 Entry Order: Mr. Gamache has filed a document with th e court, indicating he is not able to pa rticipate in the hearing as currently sc heduled. The court takes the letter as a motion to continue. As he has request ed the continuance there is no prejudice to him by granting it. The court orders the matter is continued.
Motion Hearing scheduled for 06/23/20 continued.
Motion Hearing set for 07/28/20 at 03:30 PM. MASKS ARE REQUIRED IN THE COURTHOUSE. Continued from 6/23/2020 per request dat ed 6/11/2020.
06/30/20 1 document filed for party : Mail returned- NAME DOES NOT EXIST.
07/28/20 Motion Hearing held by John W. Valente. (CDVIDEO).
07/29/20 Motion 8 (to Expunge or Seal) denied by John W. Valente. The motion is DENIED. In these two dockets, Defendant has file d a motion to expunge or seal in order t o put these matters in the past. The St ate objects as Judge Barra had denied mo tions in these dockets on May 9, 2019. Docket 1127-10-13 Bncr. is not eligible for expungement. Defendants offense of impersonating a public officer in viola tion of 13 VSA 3002 is a predicate off ense as defined by 13 VSA 7601(3). I t is not eligible for expungement. The court does not have the authority to exp unge the record. This matter may not be expunged given the current state of the law. So ordered.
Case closed.